

1/17



File No.: EXP202307678

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 30, 2023, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party).

The reasons on which the complaint is based are as follows:

The complainant states that they are a neighbor of the property adjacent to the residence of the complained party and that this party has a video surveillance system with cameras directed at the complainant's residence.

Along with the complaint, images showing the location of the claimed cameras are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

In response to the notification, on June 23, 2023, the complained party submitted the following:

"I declare that I have two fixed cameras (without movement) on my property, oriented exclusively towards my property, never towards public roads or any third-party property. I installed these cameras about five years ago, and they do not take photographs or videos. I simply have them as a deterrent and as a security measure for my family. I provide photographs of where I have the cameras installed, and if at any time they need to verify it personally, I have no problem with them doing so."

On August 14, 2023, the AEPD requested the complained party to clarify whether the cameras are operational or not, and they must clarify this circumstance. In the event that the cameras are not operational or are fictitious, they must provide the model of responsible declaration attached, duly completed and signed (including their NIF number).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/17

In response to the notification, on August 30, 2023, the complained party submitted the following:

"The video surveillance cameras on my property do work, but they do not make videos or photographs. They are installed within my property, in a fixed position and oriented towards my property, never towards another neighbor's property, and I reiterate that they can verify this whenever they deem appropriate."

THIRD: On August 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On December 23, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the complained party for the alleged infringement of Articles 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on January 7, 2025, as stated in the acknowledgment of receipt in the file.

SIXTH: On January 22, 2025, a written statement of allegations was received from the complained party in which the following considerations are made:

“FIRST: CAMERAS FOCUSED EXCLUSIVELY ON MY PRIVATE PROPERTY

The video surveillance cameras that I have installed in my chalet are two fixed cameras of the Garza brand:

- One placed inside the entrance area of my house (between my gate and the front door) that focuses exclusively on the front door of the house with an informative sign announcing the video surveillance of my own house for the security of the property and its inhabitants.
 - Another placed on another interior-rear facade of my property that focuses exclusively on my garden.
- Both cameras are oriented exclusively towards my property, meaning they do not point to public transit areas or third-party properties or neighbors, so that no person can have their privacy affected or feel intimidated by the presence of my cameras.

Likewise, as I have already communicated in previous writings submitted by me on June 23 and August 30, 2023, the aforementioned cameras do not record images or sounds, nor do they make videos or photographs; they only allow viewing or observing in real-time the areas to which they are focused, which are exclusively private areas.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/17

Document No. 1 includes several photographs of my house and the location of both cameras and the advertising sign, and Document No. 2 includes images of the areas they capture, which are solely my private garden and the entrance door to my home.

SECOND: REASONS OF SECURITY FOR MY FAMILY AND MY HOME

Considering that I am an elderly person with severe heart disease and that I live in a house located in a residential area in a low-traffic zone and away from the urban center, I consider it necessary to install surveillance cameras in my home for the deterrent purpose against potential wrongdoers and as a security measure for the residence.

My cameras are focused on the protection of my property and my family and do not affect third parties; they focus on my private space.

The installation or presence of such devices is common and usual in the other houses of the ***B.B.B. Residential Area.

The vast majority of neighbors, for obvious reasons of personal and family security, have these surveillance devices installed, and their use has gradually increased as more neighbors have installed them on their properties, to the extent that a neighbor who did not install them perceived their home as more unprotected compared to the other houses that did have this security measure.

THIRD: ABSENCE OF RECORDED IMAGES –

As has been repeatedly indicated, my cameras do not record videos or take snapshots; they only allow me to see and monitor areas of my property in real-time.

I have never captured images of any third party or of someone else's property or of the public road, so I cannot retain what I do not have, nor can I process non-existent images.

To preserve the security of my home and my family, I have no need or interest in visually invading any third party's property.

FOURTH: - NEED FOR COLLABORATION FROM LOCAL SECURITY FORCES AND BODIES -

As I have already stated in my writings from 2023 and considering that I have provided and exhausted all explanations and graphic documentation I can gather to demonstrate the legality of the two security cameras I have installed in my home, and that I have carried out and presented all actions I can take in this regard, I request that the Data Protection Agency seek police collaboration to have the authorities visit the location and officially verify:

- 1 - The situation and location of my cameras on my facades and their field of focus/vision.
- 2 - The presence of cameras, location, and focus of the cameras of the complaining neighbor.
- 3 - The existence of cameras in the rest of the El Acantilado Cerdigo Residential Area.

FIFTH: - NEIGHBORHOOD DISPUTES -

I consider it important to inform that the neighboring complainant maintains a strong rivalry with my family, including ongoing legal disputes between us, in case she may be using this agency for personal reasons.

I do not know what images she sent for the filing of the complaint, as they have not been provided to me so far, and therefore I cannot verify whether they belong to my property and my cameras and what date they are from.

That neighbor is fully aware of my details in case she wishes to exercise her rights to cancellation, rectification, etc., rights that, on the other hand, have not been affected by me since my cameras focus EXCLUSIVELY on my property.

SIXTH: - COMPLIANCE WITH CURRENT LEGALITY –

It should be noted that my actions to preserve the safety of my family and my home have always been governed by respect for the current legality regarding the protection of third-party personal data, which I have no interest in knowing, processing, or handling.

I reiterate my absolute willingness and cooperation to comply with any rules or requirements that are necessary to reconcile the protection of my home with the right to data protection of third parties.

Images from January 14, 2025, regarding the two cameras that make up the surveillance system are provided.

One camera is placed between the gate and the entrance door, and another on the interior-rear facade. The first focuses on the entrance door of the house, and the second on the garden, with an informative sign announcing the existence of the cameras.

In light of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The responding party submits photographs of their surveillance system consisting of two cameras, one placed between the gate and the entrance door, and another on the interior-rear facade.

SECOND: The responding party submits a photograph showing the informative sign of their surveillance system, which is incomplete as it does not indicate the data of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/17

responsible and outdated for using LO 15/1999 on data protection, instead of the GDPR.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement and response

The party being reported, in response to the initiation agreement, has indicated that the cameras do not record images or sounds, nor do they perform video or photographs; they only allow viewing or observing in real-time the areas they are focused on, which are exclusively private areas, providing photographs of the location of the cameras focused on the private garden and the access to the

dwelling, as well as images of the field of vision, along with the informative sign.

In response to this first assertion, it should be noted that it is not necessary for images to be recorded for there to be processing of personal data.

Regarding the focus of the cameras, the reporting party provides images that, due to their elevation and focus, allow not only capturing the private patio of the reported party but also observing the private patio of their neighbor or reporting party, which violates the privacy of their neighbor.

Moreover, the sign informing of the existence of a video surveillance system is inadequate because, firstly, it refers to Organic Law 15/1999, of December 13, on the Protection of Personal Data, which is currently repealed, as the applicable law is Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data, and which repeals Directive 95/46/EC (General Data Protection Regulation).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/17

Secondly, this sign does not indicate to whom rights can be exercised, as the box provided for this purpose states: "purpose: security of the property and its inhabitants," a space dedicated to indicating the details of the person responsible for the video surveillance system, in this case, the details of the entity with which the reported party has contracted the management services of their video surveillance system, or, failing that, the details of the reported party.

In the document sent by the reported party in response to the initiation agreement, it is stated that the cameras are for the protection of their home and family, not affecting third parties.

In response to this, the AEPD must indicate that the installed cameras cannot capture images of the private space of third parties and/or public space without a duly justified cause, nor can they affect the privacy of passersby who freely transit the area.

Therefore, the placement of cameras aimed at the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

Another assertion made by the reported party is that the cameras do not record videos or take snapshots, but only allow them to see and control areas of their property in real-time.

In response to this, it should be noted that visualization is already a processing of personal data.

Another assertion from the reported party is that the complainant has legal disputes with them, and that the complainant, being their neighbor, knows perfectly well the personal data of the reported party, in case they wish to exercise their rights.

In this regard, it should be noted that the sign must contain the current regulations on data protection and indicate who is responsible for the video surveillance system, in order to consider that the sign complies with data protection regulations; however, it does not indicate who is responsible nor the applicable regulations.

Finally, the reported party claims that the purpose of the cameras is to preserve the safety of their family and home within the current legality regarding the protection of third-party personal data.

In response to this, it should be noted that under the principle of data minimization in Article 5 of the GDPR, in terms of video surveillance, it means that in a specific processing, only the relevant personal data that are necessary for the purpose for which they are processed may be processed. The processing must be adequate and proportional to the purpose it is directed towards. The relevance in the processing of data must occur both in the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/17

moment of data collection as well as in the subsequent processing that is carried out on them. In accordance with the above, the processing of excessive data must be restricted or these must be deleted.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation.

In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined, stating:

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system with the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

“Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means,”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/17

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section “Guides and tools”).

It is also of interest, in case of carrying out low-risk data processing, the free tool Facilita (in the section

“Guides and tools”), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generates various documents, informative and contractual clauses, as well as an annex with indicative minimum security measures.

V

Obligation of Article 5.1 c) of the GDPR

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through camera or video camera systems with the purpose of preserving the safety of individuals and property, as well as their facilities.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/17

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1(c) of the GDPR, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of that data.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

In some cases, to protect private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and camcorders installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intent to intimidate them or affect their private sphere without a justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/17

In the present case, from the documentation provided in the file, it can be inferred that the reported party has installed cameras whose field of vision includes part of the property of the complaining party.
VI

Administrative infringement of Article 5.1(c) of the GDPR

In accordance with the available evidence, it is considered that the facts presented violate the provisions of Article 5.1(c) of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:
a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.
(...).”

VII

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2(b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:
(...)

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
11/17

b) issue a warning to any responsible party or data processor when the processing operations have infringed the provisions of this Regulation;
(...).”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the responsible party or data processor, may issue a warning, as well as order the responsible party or data processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.”
In the present case, given the nature of the facts and circumstances outlined in the preceding Legal Grounds, it is deemed that due to the infringement of Article 5.1 c) of the GDPR, a warning should be issued to the respondent.

VIII

Obligation of Article 13 GDPR

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, whereby:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller, at the time of obtaining such data, shall provide all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

3. When the controller intends to process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any other pertinent information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In relation to processing for the purposes of video surveillance, Article 22 of the LOPDGDD states the following:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/17

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section. However, it will be possible to capture images of public roads to a greater extent when necessary to guarantee the safety of strategic property or facilities or of infrastructures related to transportation, without in any case allowing the capture of images from inside a private home.

3. The data shall be deleted within a maximum period of one month from its capture, unless it must be

retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time knowledge of the existence of the recording is obtained. The obligation of blocking provided for in Article 32 of this organic law shall not apply to these treatments.

4. The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device. In any case, the data controller must keep the information referred to in the aforementioned regulation available to those affected.

5. Under Article 2.2.c) of Regulation (EU) 2016/679, the processing by a natural person of images that only capture the interior of their own home is considered excluded from its scope of application. This exclusion does not cover processing carried out by a private security entity that has been contracted to monitor a home and has access to the images.

6. The processing of personal data derived from images and sounds obtained through the use of cameras and video cameras by the Security Forces and Corps and by the competent authorities for monitoring and control in penitentiary centers and for the control, regulation, monitoring, and discipline of traffic shall be governed by the legislation transposing Directive (EU) 2016/680, when the processing is for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or enforcing criminal sanctions, including protection and prevention against threats to public safety. Outside of these cases, such processing shall be governed by its specific legislation and, subsidiarily, by Regulation (EU) 2016/679 and this organic law.

7. What is regulated in this article is understood without prejudice to what is provided for in Law 5/2014, of April 4, on Private Security and its implementing provisions.

8. The processing by the employer of data obtained through camera or video camera systems is subject to the provisions of Article 89 of this organic law.”

In this specific case, the respondent is responsible for a video surveillance system, with cameras directed at the residence of the complainant, without it being properly signposted as the content of the required informative signs for the video surveillance area is incomplete, and a non-current regulation is indicated, as it does not specify who is the data controller nor to which body the rights can be exercised.

IX

Administrative infringement of Article 13 of the GDPR

In accordance with the available evidence, it is considered that the respondent may have processed personal data of the complainant without adhering to the stipulations of Article 13 of the GDPR, transcribed in the previous section. Article 83.5 b) provides that “the infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...) b) the rights of the data subjects pursuant to Articles 12 to 22;” (...)

For the purposes of the limitation period for infringements, Article 72.1 h) of the LOPDGDD classifies as very serious “The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.” The limitation period for very serious infringements provided for in the LOPDGDD is three years.

X

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Initiation of the procedure and duration," states in its third paragraph:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

In the present case, given the nature of the facts and circumstances outlined in the preceding Legal Grounds, it is deemed appropriate to issue a warning to the respondent for the infringement of Article 13 of the GDPR.

XI

Adoption of measures

Having confirmed the infringements of Articles 5.1 c) and 13 of the GDPR, it is agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...".

The controller is required to notify this Agency of the adoption of the following measures within one month from the notification of the resolution of this warning procedure:

- To prove the removal or reorientation of the cameras owned by the respondent because those cameras would be directed towards the property of the complainant, complying with the principle of data minimization established in Article 5.1.c) of the GDPR, as referenced in Legal Ground V.
- To prove that the information established in Article 13 of the GDPR is provided, as referenced in Legal Ground VIII.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative warning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1 for the infringements of Articles 5.1.c) and 13 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to prove compliance with

- The removal or reorientation of the cameras owned by the respondent because those cameras would be directed towards the property of the complainant, complying with the principle of data minimization established in Article 5.1.c) of the GDPR, as referenced in Legal Ground V.

- To prove that the information established in Article 13 of the GDPR is provided, as referenced in Legal Ground VIII.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the date of notification.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/17

the day following the notification of this act, as provided for in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1403-16012024

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es